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The ‘Approvers’

Bhagat Singh was convicted on the evidence of ‘approvers’. This is the most significant aspect of evidence in the Lahore Conspiracy Case of 1930. An ‘approver’ is a participant in or accomplice to a crime that is being tried, who then gives evidence for the prosecution. He is a ‘turncoat’. He is one who has turned approver in the case because he has confessed himself guilty of the crime in question, but is now approving others of the same crime to save himself. In the Lahore Conspiracy Case, the approvers were given inducements to become ‘turncoats’. This, therefore, again begs the question as to whether the trial was fairly conducted. Given that the approvers were erstwhile colleagues of the conspirators, with whom they had exchanged vows, rubbed shoulders and stood side by side in the face of immense adversity until only very recently, if their evidence was now going to be called upon by the prosecution, it was necessary for the defence to have the opportunity to challenge such uncorroborated evidence. Justice demanded nothing less as a minimum requirement. Astonishingly, such evidence was not subject to cross-examination in the Lahore Conspiracy Case. It is not difficult to understand why. Before the special tribunal, two of the approvers said they gave their statements to the police under pressure from them. Indeed, they even wished now to have their statements retracted. It was Ajoy Ghosh, one of those who was eventually acquitted, who a decade later said that, ‘[d]ue to the tremendous popular enthusiasm that the case had evoked, a number of key witnesses had turned hostile, more were likely to follow suit, and two of the approvers had retracted their confessions’. It was unsurprising then that ‘the whole case was in danger of